

Human Rights and Artificial Intelligence: Evaluation of Legal Challenges and Potential Risk

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Abstract: Artificial intelligence creates challenges and complications for human rights. The basic assumptions are maturity of the information age has resulted in the need to adapt our laws and regulations and our policies and develop them somewhat. But the pattern of technological changes. It is often difficult for policies, regulations, and laws to keep pace. And as was the case in other periods that witnessed massive changes, it can be delayed laws and regulations in progress can lead to critical policy gaps. The current study aims to discuss manifestations of artificial intelligence's threat to human rights. than. The second requirement: is the legal confrontation of the threat of artificial intelligence to human rights and how ai might be applied in human rights-related areas. The methodology of this study presents potential challenges ahead in the field of policy while occupying intelligence in a more centralized position, whether in the private or artificial spheres, commercial or public. We cautiously approach this topic using previous studies that are currently available to support our discussion. The findings of this study show a great need to address problems associated with AI and social phenomena. Dedicated research in this field can provide help for the issues related encountered in AI practice.

Keywords: Human Rights, Artificial Intelligence; Analysis and Evaluation; Technology

I. INTRODUCTION

The transformations arising from the technological revolution, especially artificial intelligence techniques, are related and related to all aspects of the protection of human rights at the international and internal levels. These transformations may raise many issues related to violations of fundamental human rights, such as the right to privacy,

intellectual property, and others. It may deepen if irresponsible use is ignored. Where the technological development and the technological revolution that has emerged in the past years and its pace has accelerated in the current period has helped the emergence of many forms of artificial intelligence threats to human rights in general, as the advanced programming of some machines that operate with artificial intelligence have self-capabilities that enable them to make individual decisions in many One of the situations you face is just like a human being [1]. The French Council of State defined artificial intelligence as “the science that aims to make machines perform the tasks traditionally required by human or animal intelligence” [2]. With this advanced description, Artificial intelligence carries with it a severe human rights risk that requires urgent and resolute legislative interventions that provide complete protection for human rights from the risks of violation by the techniques of this artificial intelligence. Accordingly, we will address in this paper the manifestations of the threat of artificial intelligence to human rights and the legal confrontation with them in the following two paragraphs [3].

The importance of this study stems from the seriousness of the situation and the capabilities of machines and computers to work on implementing activities that mimic human actions. Among the advantages of artificial intelligence is that it reduces human error and programming to do things without memory and cannot be forgotten. The robot does not have a specific working time and psychology related to

the personal events of the person, and therefore the machine works without pressure, tension and fatigue. As well as assistance in automation and repetitive routine work, as well as performing work in areas dangerous to human life.

The great services, useful solutions and great gains provided by artificial intelligence are not denied, but rather imposing their reality, which made the lives of much easier and well-being, unlike what generations lived before. And we stand at the rising sun of a new era, in which there is no place for humans, where humanity is limited. It has opened the way for inhumanity, in which artificial intelligence has replaced human intelligence. The increasing electronic applications that have withdrawn to all sectors have made human services dispense with, especially those represented in the humanitarian approach based on values, morals, and human rights. Artificial intelligence has become commensurate with human intelligence, even challenging and superior to it, especially in the medical, educational, military (electronic warfare) and financial (electronic commerce) fields. It has many benefits, but it raises many legal problems and predicts many practical and moral risks at various levels. This prompted us to search for legislation, laws and regulations that frame this new reality. The problem of the forum: Artificial intelligence technology brings back the old debate between man and the machine; as much as man's passion is to invent devices that simulate his mental processes, he delegates to them many complex tasks to facilitate the various aspects of his life, with that passion transfers great human energies to unemployment, and creates new risks. The use of artificial intelligence capabilities in our societies today has become a living reality that dictates a change in the daily lifestyle in most fields, which has focused recently on the governance of the use of artificial intelligence according to the supervised support approach. This situation has raised new legal issues and concerns that are often characterized by privacy and how the applicable legal systems can absorb them. It has become necessary to activate effective means of social control and to be at the forefront. Religion and law, to control and regulate the uses of this technology, any legal authority and legal regulation of artificial intelligence is appropriate from the perspective of maximizing opportunities and reducing risks in our contemporary societies [4].

The current study aims to discuss manifestations of artificial intelligence's threat to human rights. than. The second requirement: the legal confrontation of the threat of artificial intelligence to human rights and how ai might be applied in

human rights-related areas. Finally, we extend discussion to introduce recommendations to addressing AI definite problem areas.

II. LANDSCAPE OF ARTIFICIAL INTELLIGENCE AND HUMAN RIGHTS

The concept of Artificial Intelligence is related to the intelligence associated with digital or electronic devices such as; Computers, cellular devices or robots, and artificial intelligence express the ability of these digital devices to perform tasks related to intelligent objects. Artificial intelligence is the behavior of devices and systems in a way that mimics humans' intelligence to perform tasks. But what is remarkable is that it improves itself and its performance, based on the information it gathers [6]. Artificial intelligence relies on superlative thinking and data analysis as well. It also goes further as it reaches the stage of machine learning, meaning that the computer deduces information, for example, through previous similar examples of this conclusion. The machine is now able to learn, figure, and react without prior programming by humans, as if it is actually thinking and being intelligent on its own. Of course, marketers and business owners will miss out on a lot if they cannot take advantage of everything that artificial intelligence offers, which will save time and effort and its accurate results [7]. AI mental framework, as shown in figure (1) consists of several types as computers performing tasks previously thought to require human intelligence.

Human rights transcend a decently defensive character to impact the objectives of social organizations, as in the formula of 'state objectives' or imperatives. The journey of human struggle for his rights bore fruit - albeit theoretically - in the middle of the last century with the agreement of civilized nations on a universal declaration of human rights containing exemplary texts that help man preserve what remains of his dignity. The Universal Declaration of Human Rights in 1948 and the subsequent protocols and supplements All conventions, treaties and charters came calling and demanding human rights [8].

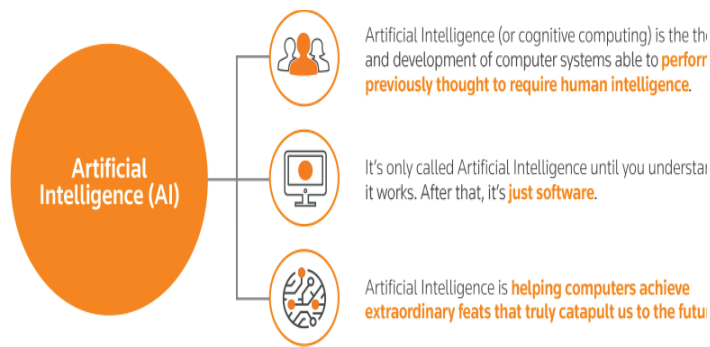


Fig. 1 AI mental framework

Source: Legal Thomson Reuters

III. METHODOLOGY AND APPROACH

The methodology of this study presents potential challenges ahead in the field of policy while occupying intelligence in a more centralized position, whether in the private or artificial spheres, commercial or public. We cautiously approach this topic using previous studies that are currently available to support our discussion.

first of all, the development and application of AI technology and the concept and characteristics of human rights are introduced. The approaches to human rights ethics are proposed to ensure that AI technology serves human beings. Every link of its research, manufacture and submission should be firmly managed and supervised. Using the literature review methods and historical analysis, the descriptions of the problems and challenges of human rights because of applying AI will be demonstrated. Merging views and perspectives from many foundations, a literature review can rigorously address issues and discover answers to research questions. A literature review is an excellent way of synthesizing research findings to show evidence on a metalevel and uncover areas where more research is needed [9].

IV. MANIFESTATIONS OF THE THREAT OF ARTIFICIAL INTELLIGENCE TO HUMAN RIGHTS

The forms of the threat of artificial intelligence techniques to human rights are many and varied, such as algorithmic bias and artificial intelligence-supported advertising, the use of facial recognition software when monitoring security, the increase in digital fingerprints, which represents a violation of the internationally protected right to privacy, and control or access to personal information of individuals by governments, which represents a violation and a threat to freedom of expression. According to a United Nations report, artificial intelligence techniques can reach conclusions about human physical and mental

characteristics, predict their future medical condition, their suitability for jobs, and the likelihood that they will commit violations to obtain health care, insurance and any other financial services, as well as among the forms of threat that Recruitment programs are using artificial intelligence techniques devalue women, and describe black women as recidivists or even their tendency to commit crimes based on the color of their skin only [10].

Therefore, if used for these purposes and in these ways, unorganized artificial intelligence systems are described as one of the means of threatening human rights. These rights are internationally protected as stated in the Universal Declaration of Human Rights of 1948. States have to work to ensure and respect them within their countries and consider their protection even if requested. The matter is that it harmonizes with its national laws if they are inconsistent with what it came with to ensure absolute security for the human being [11].

In this regard, the groups most vulnerable to the threat of digital technology are the marginalized and the poorest in society because of the misuse of their data, or when they are exposed to decisions taken by artificial intelligence machines that carry within it discrimination based on color, gender, religion, belief, financial ability and other forms of discrimination, which requires The establishment of civil and criminal legal responsibility as a result of the illegal use of artificial intelligence techniques [12].

In this regard, the United Nations High Commissioner for Human Rights (Michelle Bachelet) noted that AI technologies can enter every corner of our physical and mental lives and even our emotional states. Technology also has the potential to be a “force for good” that can have “negative and even catastrophic effects if used without adequate consideration of how it affects human rights. The report warns against the increasing use of techniques that attempt to infer the mental and emotional state of suspects in police stations and technical matters during the stages of arrest, detention and interrogation because they often lack the solid scientific basis and that this is an undermining of the human right to privacy, freedom and a fair trial that is legally protected [14].

Also, one of the manifestations of the threat of artificial intelligence techniques to human rights is its threat to the right of credit and unfair lending or discriminatory lending and consumer protection. Where it happens that the allocation of credit depends on the risks of the borrower, which is known as (risk-based pricing) through which

lenders determine the real risks of the borrower and charge fees from him accordingly. (income, credit history, and debts) based on which credit is granted and its amount, even if these factors are closely related to race, gender and color, and that there are bank loans that are awarded based on personal relationships and discrimination against racial and ethnic minorities, and even that the mortgage may take a racial form through Grant loans to residential neighborhoods to be separated from each other based on race [15].

The US Equal Credit Opportunity Act of 1974 (ECOA) is one of the main laws applied to ensure access to credit and protect against discrimination such as race, gender, national origin, age, and less common factors such as whether or not a person receives public assistance. So there is a relationship between artificial intelligence and credit allocation when credit is granted through social communication using a computer to know what the credit applicant wears and where to buy his clothes and data. And that the refusal of credit in the age of artificial intelligence requires informing the lender of the reason, and if the refusal is based on information or data related to illegal discrimination, here consumers and advocates for consumers are allowed to provide the necessary information to follow up on legal procedures to stop discrimination. In this regard, we ask the following question (Is it acceptable to the bank to reject one of the credit requests because the machine suspects the issue of infidelity? If this is the case, the bank will inform the consumer of the above reason, which raises a set of privacy concerns [16].

This leads to an urgent need for financial regulators and legislators to set new rules and policies to govern this new world, i.e. measures of artificial intelligence and privacy penetration. Where the right to privacy is one of the rights most vulnerable to violation by artificial intelligence, because artificial intelligence systems are based on data that is related to various behaviors loaded with cultural symbols that may lead to unfair behavior such as reporting accounts that contain non-traditional names on social media platforms, and this phenomenon is called (conflicts). Names) are used by platforms such as Twitter, Google Plus and others to distinguish between real names and fictitious names extensively, and we also find that the violation of the right to privacy has another form related to deleting or hiding sensitive variables for users, such as using the postal code to infer the possibility of an individual's income. This in itself is a violation of the right to privacy and anonymity, because modern machine learning techniques can very

easily re-identify any data and whenever they want [17]. It stipulates the right to privacy and correspondence, as it came in the form: (No one may be subjected to arbitrary interference in his private life, family, home or correspondence affairs, nor to campaigns affecting his honor and reputation. Every person has the right to be protected by law from such interference or such campaigns. Reliance on malicious algorithms is a form of artificial intelligence threatening the right to privacy by designing poor or biased algorithmic systems. Customers are technology companies that rely on artificial intelligence. The data is usually extracted through social media and personal sources that may be sensitive. Thus credit companies may rely on indirect data to obtain the zip code, such as the high school from which the loan student graduated, and this pushes the latter to grant credit racist by employing biased algorithms that have their own detriment to individuals [18].

There are other manifestations represented in the use of artificial intelligence tools in internal security by highlighting the most prominent risks associated with artificial intelligence, and among the deep examples of these risks are the governments' deployment of artificial tools to monitor civilians and government surveillance at its best reflects the government's intention to act, but the purpose may not carry. The same moral or legal weight as actual actions, but it may be difficult to convince others of this difference when the government is repressive, and reports indicate that the US government's surveillance has not been a neutral tool throughout history, as it can be unfair surveillance, regardless of legal basis. Inequality is entrenched and the dominance of the development of artificial tools enables both repressive and benevolent governments to practice surveillance. The use of artificial intelligence tools in the field of internal security has become commonplace and is therefore no longer just a foresight. Legal scholars have indicated a lot about the use of data-based algorithmic systems in surveillance. In the field of managing social welfare benefits, the US police's use of predictive algorithms in criminal justice procedures, and the growing use of artificial intelligence tools in the United States of America in this way may lead to concerns about the basic rights of citizens and the accompanying erosion of privacy [19].

V. THE LEGAL CONFRONTATION OF THE THREAT OF ARTIFICIAL INTELLIGENCE TO HUMAN RIGHTS

Tracker of the legislative movement in France finds a package of laws that tried to harmonize between artificial intelligence techniques and human rights, including Law No. (78-17) French issued in 1978 on information technology, data files and civil liberties, as well as the official French data protection and freedoms law of 1978, which requires those dealing with private data, including artificial intelligence techniques, must respect it, and not misuse or neglect to preserve it or use it for purposes other than those for which it was prepared, primarily commercial purposes, as well as stipulating the prohibition of individual decisions issued by the machine independently with some exceptions to this The ban contained in the official digital law No. (2016-1321) for the year 2016, which is (the administration may take some decisions based on algorithms provided that they lead to reaching the person concerned directly and reliably and unambiguously), and there is another exception for French intelligence agencies in Law No. (2015-912 of 2015 authorizing intelligence agencies (the use of algorithms aimed at detecting the presence of a terrorist threat by using personal data of for those concerned with it [20].

Last September 2021, the United Nations High Commissioner for Human Rights published a stark warning calling for a ban on AI applications that cannot be used in line with international human rights law. Commissioner Michelle Bachelet said, “Artificial intelligence can be a force for good, helping societies overcome some of the defining challenges of our time. However, AI technologies can have negative, even catastrophic, effects if used without sufficient consideration of how they affect human rights.” In previous reports, the Commission had clarified the negative effects of adopting artificial intelligence techniques, in terms of collecting and analyzing people's information, and reaching results that may not be accurate. The future of disposing of this data remains unknown, which creates a more significant obstacle to confronting it. The commissioner added: “Closing the huge and visible accountability gap for how data is collected, stored, shared, and used remains one of the most pressing human issues given artificial intelligence's rapid and continuing growth.” The Commission concluded its report with an urgent request to assess the impact of artificial intelligence systems on human rights to mitigate its effects, and called on technology companies for more transparency about the development of these systems and how they are used, stressing that the secrecy adopted by companies and governments keeps public opinion unaware of the risks and potential impacts on their rights [14].

In any case, the direction of European countries, including France, is working to reconsider the legal qualification of the robot and its legal responsibility for it (machines that rely on artificial intelligence techniques and robots) in an attempt to give it a legal status somewhat different from the concept of things known in civil law, and we see that this It is an anticipation of the legislator or a prelude to what artificial intelligence will reach shortly first, and the desire of the legislator to grant the legal personal robot to protect society from irrational and illegal use of it, secondly, given that it exists physically and has someone who controls it and that this controller or directing mind cannot ignore him [20]. Concerning protecting the right to privacy from the risk of infringement by artificial intelligence, Barukas and Nissenbaum discussed in 2014 a study of the ability of technologies and algorithms to circumvent any legal guarantees related to privacy by accessing big data. The artificial intelligence techniques of these algorithms are able to reconstruct sensitive fields that their owners have implicitly hidden in order to adopt them in the discriminatory classification, and this creates many problems related to how to address this, in terms of legal protection by enacting legislation against this explicit use of the above-hidden information But at the same time, it is difficult to legislate against the use of information and data. This is a regulatory loophole exploited by agents or manufacturers. In 2021, the United Nations High Commissioner for Human Rights, Michelle Bachelet, stressed the urgent need to stop the sale and use of AI systems that pose a grave threat to human rights, and called for appropriate safeguards to be adopted. It also called for a ban on AI applications that cannot be used according to international human rights law.

As part of its work on technology and human rights, the Office of the United Nations High Commissioner for Human Rights has published a report analyzing how artificial intelligence, including profiling, automating decision-making and others, affects people's right to privacy and other rights such as health, education, freedom of movement, freedom of peaceful assembly and association, freedom of expression [21].

However, the right to privacy is not violated by the uses of artificial intelligence if the data is public. There is no legal problem in that, but the perception of the problem occurs when we are in front of private data, because artificial intelligence depends on a huge database about users such as name, gender, health status, profession and warranty numbers Social, educational attainment, number of family

members, their ages, and other information that fall within the legally protected private data, which requires the protection of this data by defining what is allowed and what is not allowed, regardless of any other considerations that violate the laws [22].

VI. CONCLUSION

This study examined the manifestations of the threat of artificial intelligence to human rights. The second requirement: is the legal confrontation of the risk of artificial intelligence to human rights and how ai might be applied in human rights-related areas. In the research conclusion, we can include a number of the results. Artificial intelligence tools are intelligent, multi-skilled machines that can interact and make decisions, making them unique beings that go beyond describing something. It does not come to the rank of being considered a human being. Consolidating the discourse of artificial intelligence in human rights as the right to privacy, equality and non-discrimination open the door to benefit from the United Nations institutions to meet and chart a common way forward in raising awareness of the effects of the harmful use of artificial intelligence techniques on human rights internationally, preventing these violations and taking effective measures to limit them or eliminate it.

Furthermore, the human rights law is clear. It is the highest international non-political document described as an ideal without borders, with its legal basis and obligation towards all countries. This plays a significant role in developing the uses of artificial intelligence harmlessly and dangerously. Thus, human rights can be applied to the modern challenges represented by digital intelligence [23].

The independent legal personality of artificial intelligence machines must be recognized, and a deep and practical review should be done by identifying them as legal personalities within special rules that take into account the specificity and nature of technologies. The main recommendation is to emphasize encouraging the responsibilities of law and rights actors to demonstrate the human rights standards in the setting of artificial intelligence. With the increasing development of artificial intelligence and the extension of digitization products to all areas of life, we are either an ethical development that requires responsible legislative bodies to pay close attention to emphasizing human rights and freedoms. And not to prejudice the human rights affirmed by international conventions. The legal players and those interested in civil and legal studies should address the research and studies

that preserve and preserve these rights, and monitor the developers' work so as not to give them a justification for committing violations of these rights. The existence of industrial development, computers and robots is to serve the human being in general. He has to employ these products in order to provide prosperity and peaceful living for societies. Therefore, they must be supported, but in a way that does not challenge the freedom and rights of minorities and observe the rights of different races.

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